Bottom Rail on Top

Reconstruction, Part 2

15 MINUTE HISTORY · NARRATION SCRIPT · 2,253 WORDS · ABOUT 13:08

> ***Driving question:*** *Five years after slavery ended, a Black minister from Mississippi was in the U.S. Senate. How did that change so fast? And what was all of it resting on?*

Underlined = vocabulary card on screen · *italic* = spoken with emphasis · timestamps are estimates until the voice is recorded

0:00 The First Black Senator

In 1861, Jefferson Davis walked out of the United States Senate to lead the Confederacy. Nine years later, his home state sent a new senator to Washington. A Black minister named Hiram Revels.

This is a print made to celebrate him and six Black congressmen. Look at the man seated on the left. The first Black senator in American history.

But before he could sit down, some senators tried to stop him. The Constitution says a senator has to have been a citizen for nine years. And until 1866, they argued, no Black man had been a citizen at all. Remember the Dred Scott decision? They were still using it.

It didn't work. The Senate voted 48 to 8, and Revels took the oath.

Five years earlier, not one Black man in Mississippi could vote. So how did that change so fast? And what was all of it resting on?

We'll find out. And along the way, we'll meet a blacksmith from a small town in Mississippi. Hold onto him.

But first, a quick catch-up.

1:28 The Army Goes Back In

Here's where we left the wall. The Civil War ended, and slavery ended with it. President Andrew Johnson pardoned the Confederacy's leaders and gave them back their land. The South answered with the Black Codes. And Congress fought back with the 14th Amendment. When the freed families of Edisto Island lost their land, they described themselves in three words. *Landless. Homeless. Voteless.*

By 1867, Congress was in charge. And it was done asking nicely.

In March, it passed the **Reconstruction Act**, over Johnson's veto. Here's what it did, in three parts.

One. Ten Southern states were put under the army. They were split into five **military districts**, each run by a Union general. Tennessee was left out. It had already ratified the 14th Amendment.

Two. To get out, each state had to write a new constitution. And Black men had to be allowed to vote, both for the people writing it and in every election after.

Three. Each state had to ratify the 14th Amendment.

This is the start of **Congressional Reconstruction**. Some people call it Radical Reconstruction.

To many white Southerners, it was a military occupation. They called it rule by bayonet. To freedpeople, it was something brand new: a government with soldiers, standing on their side.

2:38 The Blacksmith

And freedpeople moved fast.

Within months, hundreds of thousands of Black men had registered to vote. Many had never held a ballot. Plenty of them couldn't read one.

They voted anyway, and they organized. In churches, at rallies, in political clubs that met at night.

In Mississippi, one of the men they sent to write the new state constitution was Charles Caldwell.

He was born into slavery. He became a blacksmith in Clinton, a small town about 12 miles from Jackson, the state capital. Now he was helping write the laws of a state that had treated him as property.

The new Southern constitutions changed things. Black men could vote and hold office. And most of these states got something they had never had: public schools paid for by the state, for Black children and white children alike. Usually in separate buildings. But for the first time, there.

Caldwell kept rising. In 1870, his county sent him to the Mississippi state senate.

Remember Edisto's three words? One of them was about to be crossed out. But first, Congress had to get past the President.

3:39 One Vote Short

Johnson couldn't stop the Reconstruction Act. So he did the next best thing. He got in its way.

He removed army generals who enforced it too hard. And Congress saw that coming. It passed a law called the **Tenure of Office Act**. It said the President couldn't fire certain top officials without the Senate's permission.

The official they were protecting was Edwin Stanton, the Secretary of War. He ran the army, and he was the last Radical ally in Johnson's cabinet.

In February 1868, Johnson fired him anyway.

Three days later, the House voted to **impeach** him. Impeaching is like filing charges. The House accuses; then the Senate holds a trial. And it

takes two-thirds of the Senate to remove a president.

One of the men who argued the case against him was Thaddeus Stevens. Remember him? The Radical with the land plan. He was so sick by then he had to be carried in.

In May, the Senate voted. 35 to remove Johnson. 19 to keep him. One vote short of two-thirds.

Why? Some Republicans thought firing a cabinet member wasn't the kind of crime the Constitution meant. Others were nervous about who would replace him. Either way, Johnson stayed. But he had almost no power left.

Stevens died that summer. He asked to be buried in one of the only cemeteries in his town that accepted Black and white people alike. His gravestone says he chose it to show, in death, "equality of man before his Creator."

His plan to give freedpeople land died with him.

5:05 The 15th Amendment

That fall, 1868, the country elected a new president: Ulysses S. Grant, the general who had won the war. He was a Republican. And in the South, Black voters helped put him there.

Republicans noticed. The vote was what made everything else possible. So they wanted to make it permanent.

In 1869, Congress sent the states the **15th Amendment**. It says the right to vote can't be denied "on account of race, color, or previous condition of servitude."

Translation: you can't be kept from voting because you're Black, or because you used to be enslaved.

It was ratified in 1870. And on that card from Edisto, one word gets crossed out. *Voteless.*

But read it closely. It says what you can't use to stop someone voting. Race. Color. Having been enslaved. It doesn't say anything about a tax to vote, or a reading test, or a rule that excuses anyone whose grandfather could vote. Hold onto that. It's going to matter.

And it says nothing about women, Black or white. Women who had fought slavery alongside the abolitionists were left out, and the fight over it split the women's movement in two.

Still. Five years after the war, freedmen could vote across the whole country. In parts of the South, they were most of the voters.

6:17 Bottom Rail on Top

And that's when it happened. The moment from the start of this video.

In February 1870, Mississippi was let back into the Union. Two days later, Hiram Revels was sworn in as a U.S. senator. He had been born free in North Carolina. He was a minister and a teacher, and during the war he served as a chaplain for Black Union soldiers.

He wasn't alone. During Reconstruction, about 2,000 Black men held public office. Sheriffs. Mayors. Judges. State lawmakers, like Charles Caldwell. Sixteen served in Congress, including two senators, both from Mississippi.

There's a phrase from the time for this. Freedpeople said the **bottom rail** was on top. Picture a rail fence. The bottom rail was always the one in the mud. Now it was on top. You'll find the phrase in their mouths, and in the cartoons of people who hated the idea.

So what did these new governments do?

They built the first public school systems in the South. They built hospitals and roads, and rebuilt railroads wrecked by the war. They got rid of the Black Codes.

They also raised taxes. And some officials were corrupt. Critics, then and later, made that the whole story.

But corruption wasn't a Southern thing in the 1870s. It was everywhere. In New York City, a political boss named William Tweed stole tens of millions of dollars. Nobody said New Yorkers weren't fit to govern themselves.

7:36 Carpetbaggers and Scalawags

Black voters weren't the only Republicans in the South. White Republicans got names too. Neither one was a compliment.

Carpetbaggers were Northerners who moved south after the war. The insult said they showed up with everything they owned in a cheap bag made of carpet, ready to fill it with whatever they could grab.

Some did come to get rich. But many were Union veterans, teachers, ministers and businessmen who stayed to rebuild. They held only a small share of offices, but some of the highest ones.

Scalawags were white Southerners who voted Republican. The word was slang for a worthless farm animal. Some were small farmers who had never wanted to leave the Union. Some were business owners who wanted railroads, schools and growth. And plenty of them still didn't believe in equality. They just believed in the Republican plan.

Here's one carpetbagger worth remembering. Adelbert Ames, a Union general from Maine, ran one of those military districts. Then Mississippi sent him to the U.S. Senate, in the same year as Revels.

And here's the twist. You might hear that Revels took Jefferson Davis's old seat. He didn't. Mississippi has two Senate seats. Revels got the other one. Davis's old seat went to Ames.

We'll see Ames again. He's going to be the one asking for help.

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8:56 No Land

Because there was one thing Reconstruction never delivered. The land.

Remember Garrison Frazier in Savannah? "The way we can best take care of ourselves is to have land." Remember Edisto? Thaddeus Stevens's plan died with him. Most freedpeople were still farming land owned by someone else.

And everybody had a problem. Planters had land but no money to pay workers. Freedpeople had their labor, but no land and no money. The Freedmen's Bureau pushed them to sign work contracts with planters, sometimes the same men who had owned them. Those often fell apart.

So they landed on a deal. It's called **sharecropping**.

Here's how it worked, with one family. A planter divides his land into small farms. A family moves onto one, maybe 20 or 30 acres, with a cabin. The planter provides the land, and maybe a mule and tools. The family provides the work. At harvest, they split the crop. Often half and half.

There was a step up from that, called **tenant farming**. A tenant rented the land, paid in cash or a fixed amount of crop, and usually owned their own tools and mule. More freedom. More risk.

At first, sharecropping looked like progress. No overseer. No whip. A family working together, on its own schedule, growing a crop that was partly theirs.

But that word, partly, is where the trouble started.

10:11 The Debt

A crop takes all year to grow. And until harvest, a family has to eat.

So they bought what they needed on credit. Food, seed, clothes, tools. Usually from a local store, and the store was often owned by the planter.

To get that credit, they signed a **crop lien**. That's a promise that the store gets paid first, out of the crop, before the family sees a cent.

The prices were high. So was the interest. And at the end of the year came settling up. Here's what that looked like.

The crop is sold. The family's half comes in. Then the store subtracts everything they bought, plus interest. And the family finds out it owes more than it made.

That means they can't leave. In many places, leaving with a debt could get you arrested. So they sign on for another year, already behind. Then another.

Some people called it slavery by another name. It wasn't slavery. You couldn't be sold. Your family couldn't be split up. But for a lot of families, it was a trap with no way out.

And remember those six words in the 13th Amendment? *Except as a punishment for crime.*

Southern states started leasing out prisoners. Railroads, mines and planters paid the state, and the prisoners did the work, unpaid. Most of them were Black, many arrested for things like vagrancy, the crime of not having a job. Thousands died doing it.

It's called **convict leasing**. And it was legal.

11:41 The Ground They Stood On

So let's step back, look at the wall, and go back to the question. Five years after slavery ended, a Black minister from Mississippi was in the

U.S. Senate. How did it change so fast?

Because Congress forced it. The army held the South while new state governments were written. Black men got the vote, and they used it, sending about 2,000 of their own to office. And the 15th Amendment wrote the vote into the Constitution.

To Republicans, this was finally a South rebuilt on equal citizenship. To most white Southerners, it was a world turned upside down by outsiders and soldiers. Bottom rail on top. They meant it as a warning.

And what was all of it resting on? Two things. Votes, and the soldiers who protected them.

Not land.

Look at the card from Edisto. *Voteless* is crossed out. *Landless* is still there. Freedpeople could vote. They could hold office. But most of them still didn't own the ground they stood on. And people who don't own the ground can be pushed off it.

As for the soldiers, they were only there as long as the North wanted them there.

Charles Caldwell was still in the state senate. In 1873, the governor made him a colonel in the state militia, the state's own part-time army. Two years later, that's what would get him killed.

Next time: the Klan, a crash, a bank, and a deal that ended it all.

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